

Mohammad Izlal Siddiqui v. State of U.P.

Allahabad High Court (Lucknow Bench) · Division Bench · 25 March 2025 · 2025:AHC-LKO:16955-DB · WRIT - C No. 2824 of 2025 · **Writ disposed; application to be processed on indemnity bond**

HEADNOTE

Where title to ancestral premises is disputed and a partition suit is pending, an applicant who claims to be owner must still furnish an indemnity bond under clause 4.4 of the Electricity Supply Code, 2005. The competent officer shall process the connection application, verify lawful possession, and decide in accordance with law. The order does not determine title or possession and yields to any court restraint against connection.

FACTUAL SUMMARY

Mohammad Izlal Siddiqui applied for an electricity connection at a house in Village Muzaffar Khedi, Behind S.M. University, Sarosa Bharosa, Mohan Road Sadrauna, District Lucknow, claiming it as his. Counsel for the Electricity Corporation submitted that ownership of the ancestral house was disputed, it was not recorded in the petitioner's name, and a partition suit was pending, but that the application could be considered if he submitted an indemnity bond, established possession, and met other requirements.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

indemnity bond where ownership disputed

HOLDING

Even if the applicant claims to be owner, a pending partition suit and disputed title require an indemnity bond under clause 4.4 of the Electricity Supply Code, 2005. The SDO/EE shall process the pending application, verify lawful possession, and decide the grant of connection in accordance with law, applying the principles in Seema Mansoor and Chandu Khamaru (though those were tenant-landlord cases). The direction has no bearing on title or possession and is unavailable if a court restraint forbids connection. ¶ [unnumbered](#)

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond Where title to ancestral premises is disputed and a partition suit is pending, an applicant who claims to be owner must still furnish an indemnity bond under clause 4.4 of the Electricity Supply Code, 2005.. ¶ [unnumbered](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — TITLE AND POSSESSION OF THE PREMISES

The order has no bearing on any question of possession or title pending before any Court or Authority. ¶ [unnumbered](#)

NOT DECIDED — WHETHER CONNECTION SHOULD BE GRANTED ON THE MERITS

Left to the competent officer after verifying lawful possession and deciding in accordance with law; benefit withheld if a court restraint exists. ¶ [unnumbered](#)

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
Seema Mansoor v. U.P. Power Corporation Ltd. 2014 (6) ADJ 672			Court	Referred
Sri Chandu Khamaru v. Nayan Malik			Court	Referred

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
(2011) 12 SCC 314				

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.